

22STCV12767 22STCV12767

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Case Number: 22STCV12767 Hearing Date: September 1, 2026 Dept: B

Tentative Ruling

Aguilar v. Ramosjuarez, Case no. 22STCV12767

Hearing date September 1, 2026

Defendant

Ramosjuarez's Motion to Tax Costs

Plaintiff

Aguilar sued defendant Ramosjuarez for injuries arising out of a motor vehicle accident. Jury trial concluded on 5/14/26 with a \$40,000 verdict. 5/14/26 Min. Order. Plaintiff filed a memorandum of costs for \$98,444.06 (See 6/30/26 Memo. Costs) and a later a notice of errata with an updated memorandum seeking \$92,632.06. See 8/21/26 Memo. Costs. Defendant moves to tax; plaintiff opposes.

"As

a general rule the parties to litigation are required to finance their own participation in litigation." Ripley v. Pappadopoulos (1994) 23 Cal.App.4th 1616, 1622. "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." Code Civ. Proc. §1032(b). Only certain costs are recoverable, including deposition transcriptions, ordinary witness fees, and expert witness fees authorized by the court. See Code Civ. Proc. §1033.5(1)(3)-(8). "To recover a cost, it must be reasonably necessary to the litigation and reasonable in amount." Thon v. Thompson (1994) 29 Cal.App.4th 1546, 1548.

Defendant

moves to tax items 5 – service of process (\$8,601.77), 8 – witness fees (\$47,006.50), 11 – court reporter fees (\$15,830) and 15 – other, prejudgment interest (\$16,054.79). See 8/21/26 Memo. Costs. Defendant disputes items 5 and 11 as unreasonable and items 8 and 15 as unrecoverable on the basis of an invalid Code Civ. Proc. §998 offer.

Defendant

argues item 5 contains excessive and duplicative service costs, with 39 service charges for service, including multiple service attempts on multiple individuals. See 8/21/26 Memo. Costs. Defendant argues plaintiff failed to demonstrate the necessity of multiple service attempts.

Costs

of “service of process” are recoverable under Code Civ. Proc. §1033.5(a)(4) as a “matter of right.” *Baker-Hoey v. Lockheed Martin Corp.* (2003) 111 Cal.App.4th 592, 600. Trial was continued multiple times. It is not unreasonable that plaintiff would serve and re-serve witnesses to appear at each trial date. Costs associated with a “potential witness” or those whose testimony may aid in preparation for trial are recoverable. See *Evers v. Cornelson* (1984) 163 Cal.App.3d 310, 317. Each witness served with a trial subpoena was listed in the joint witness list. See Decl. Chung, exh. 9. There is no basis to tax or strike the requested service costs.

Defendant

argues item 11 is unclear as to whether “this amount represents the entire cost of the court reporter or [p]laintiff’s share.” Mtn., 10:3-4. Counsel Chung’s declaration and attached invoices, demonstrates the \$15,830 sought is for plaintiff’s portion only. See Decl. Chung, exh. 10. Plaintiff is entitled to recover these costs. Code Civ. Proc. §1033.5(a)(11). There is no basis to tax or strike court reporter costs.

Defendant

argues plaintiff is not entitled to items 8 or 15, asserting plaintiff’s 998 offer was not reasonable. A reasonable section 998 offer “must carry with it some reasonable prospect of acceptance.” *Elrod v. Oregon Cummins Diesel, Inc.* (1987) 195 Cal.App.3d 692, 698. Defendant argues plaintiff served a 998 offer on 11/14/22 demanding \$25,000, \$10,000 over defendant’s policy limits. See Decl. Chung, exh. 7. Defendant argues plaintiff knew defendant had limited financial means, and asserts this offer was not

reasonably intended to be accepted.

Plaintiff

argues two section 998 offers were served: an initial \$15,000 policy-limits demand on 5/24/22 (Decl. Chung, exh. 2) and a \$25,000 demand on 11/14/22. Id. at exh. 7. Plaintiff argues the initial offer was made after defendant was made aware of plaintiff's injuries, medical damages and liability status. Id. at exhs. 3-6. Plaintiff argues she made two reasonable 998 demands prior to trial, where she obtained a more favorable judgment.

"[W]hen

a party obtains a judgment more favorable than its pretrial offer, [the offer] is presumed to have been reasonable and the opposing party bears the burden of showing otherwise." Elrod, supra at 700; Essex Insurance Co. v. Heck (2010) 186 Cal.App.4th 1513, 1528. Defendant argues the initial 5/24/22 offer was made only 5 weeks after litigation commenced and asserts insufficient time to have conducted discovery and evaluated the demand.

This

ignores the evidence of plaintiff's injuries and medical damages provided to defendant, which should have given defendant notice of the severity of claims and allow counsel time to evaluate the risk of an adverse trial result. Further, plaintiff is not required to wait prior to serving a 998 demand. The purpose of such offers are to avoid costly litigation, including discovery efforts. The 5/24/22 offer was reasonable for purposes of awarding costs. Plaintiff is entitled to recover witness fees and prejudgment interest pursuant to Civ. Code §3291.

Defendant

argues in reply that even if the 5/24/22 offer was reasonable, the \$47,006.50 in witness fees is unreasonably high. This was not raised in the initial motion. Notwithstanding, the argument that plaintiff failed to establish "that every dollar charged by those experts was reasonable and necessary" (Reply, 5:2-3) is not well-taken.

Plaintiff

retained three expert witnesses: Miller (pain management), Gross (neurology) and Feerick (life care planning). See Decl. Chung, exhs. 11-13. They offered testimony regarding the nature and extent of plaintiff's injuries and costs of care. Id. Defendant called orthopedic and neurological experts

contesting the extent of the injuries and damages, demonstrating the need for plaintiff's expert witnesses. There is no basis to tax or strike the expert costs requested.

DENIED.